

**AS A LAWYER,
WHAT YOU SHOULD
DO TO ASSIST YOUR
CLIENT IF THEY ARE
ARRESTED FOR
IMMIGRATION
OFFENCES?**



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Prior to **contesting the prosecution's evidence in court**, it is imperative to thoroughly verify the validity of your client's legal documents i.e. visa or pass.

Make sure your client's have;

- 1.Exit/Entry Record
- 2.PLKS (Pas Lawatan Kerja Sementara) **or**;
- 3.Recalibration Program **or**;
- 4.Student Pass **or**;
- 5.Dependent Pass **or**;
- 6.Professional Pass (Expatriates)
- 7.Stamp Authentication
- 8.Passport Authentication



Upon arrest, standard verification procedures are conducted by the authorities; however, the scope of these checks varies based on the arresting body.

If your client was apprehended by the **POLICE**, their verification will likely involve **only the Exit/Entry Record**.

OR

Conversely, if the arrest was made by **IMMIGRATION** authorities, a more thorough verification process is typically employed, **utilizing their internal systems for detailed checks**.

During a police arrest, your client may encounter several issues, such as:

Your client entered Malaysia using an old passport and may now be in possession of a new passport with a valid visa; however, this scenario may result in the absence of an entry record.

OR

Your client's previous passport may be expired or lost. As the new passport was issued by a different department, the Exit/Entry Record will not reflect their entry into the country, due to the lack of synchronization between the separate systems and departments.

Typically, the police do not inspect old passports, which may result in your client being charged under Section 6(1)(c) of the Immigration Act (commonly referred to as 'kosong').

As legal counsel, it is prudent to request verification of your client's old passport. For instance, in the case of Bangladeshi nationals, the old passport number is often listed in the new passport.

To mitigate potential issues, always advise your client to maintain a photocopy of their old passport.

“ **The authority to remove immigrants lies solely with the Director General (DG) of Immigration.** Neither the Deputy Public Prosecutor (DPP) nor the Court has the jurisdiction to order an immigrant's removal. However, **the powers exercised by the DG of Immigration or the Immigration Department can be subjected to judicial review in cases of non-compliance with Act 155.** The DG will issue a PTU (Perintah Tanah Usir) for such removals. ”

However, can your client be granted bail?

Your client can be granted bail by the Court for offenses under the Immigration Act, such as Section 6(1)(c) or Section 15(1)(c), provided they have their passport.

But what happens if your client does not have a passport?

In such cases, they can still be granted bail with the issuance of a Special Pass of Section 6(4) of Act 155 states that the burden of proof lies with the individual to demonstrate that they have entered Malaysia legally.

The fact that your client is an immigrant is not grounds for denying bail.



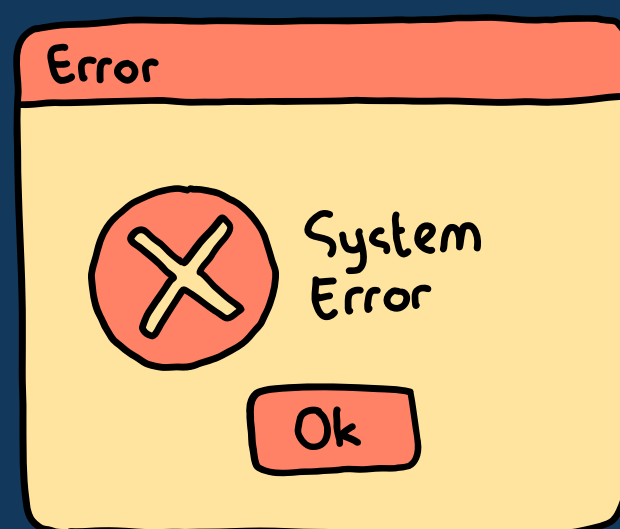
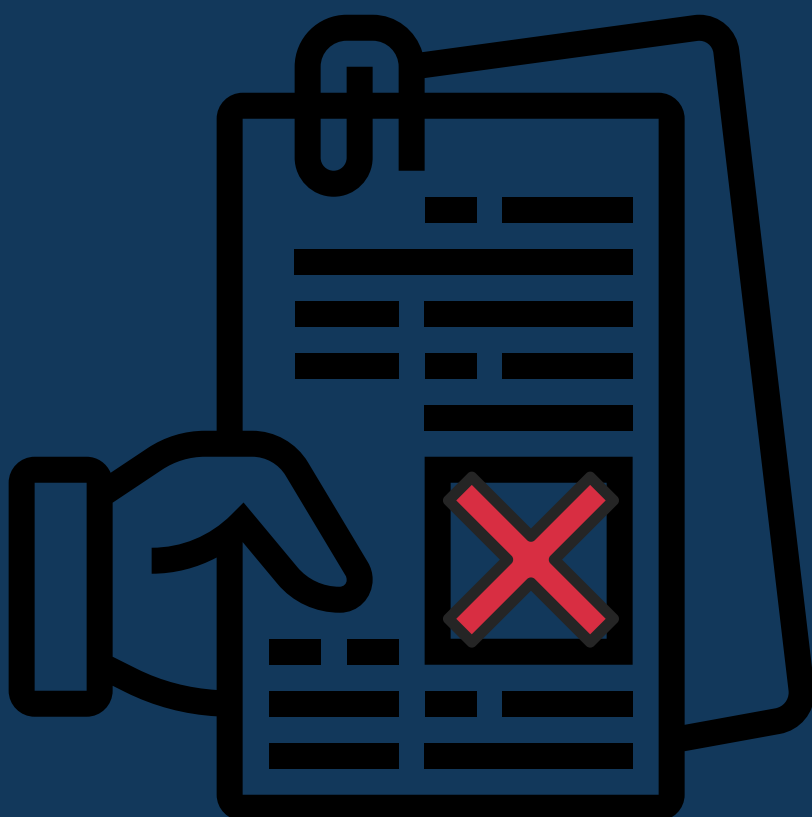
Why some immigrants have no Exit/Entry record?

Some immigrants enter Malaysia **legally with their current passports, but there may be no record of their entry due to system issues**. This can occur when the immigration system is down, necessitating manual recording of their entry.

The manual process involves the following steps:

- The immigration officer at the counter stamps the immigrant's passport and records the entry code.
- A physical verification is conducted before the code is recorded. If the code is not subsequently entered into the system, there will be no official record of entry.

This process is prone to errors, especially given that the immigration Standard Operating Procedure (SOP) allows only 20 to 30 seconds to clear each individual.



For your understanding, here are some scenarios that could occur when your client is arrested by the authorities:

SENARIO A:

- Your client entered Malaysia with an old passport, and due to a system outage, their entry was manually stamped on the passport. Subsequently, they checked into a hotel that was later raided by the police.
- During the raid, the police will examine the Entry/Exit record and find no electronic record of your client's entry. Consequently, your client may be charged under the 'kosong' provision and face imprisonment, as bail will likely be denied in the absence of proper travel documents.

In such cases, you should request the Investigating Officer (IO) to conduct a verification of the stamp on your client's passport. If the stamp is authenticated, your client may be acquitted.



For your understanding, here are some scenarios that could occur when your client is arrested by the authorities (cont.):

SENARIO B:

- Your client entered Malaysia with an old passport. Due to a system outage at the time, their entry was manually stamped on the passport.
- Subsequently, they lost the old passport, lodged a police report, and obtained a replacement passport from the embassy. They were then apprehended during a raid.

In such circumstances, it is crucial to request the Investigating Officer (IO) to verify the stamp on the old passport. If the verification can be substantiated, this evidence may significantly aid in your client's defense and potential acquittal.

This is more complicated as the stamp cannot be verified. If possible, ask for a photocopy of their old passport - always advise your client to keep a copy of their old passport.



Therefore, what will be **faced by your client after sentencing?**

There will be 2 issues which:

a. In the event that your client enters a guilty plea and remits the associated fine solely.

- They shall be detained for a period not exceeding 30 days pursuant to Section 35 of the Immigration Act to facilitate their removal process.
- Subsequent to the cancellation of their Pass, the Order of their removal (PTU) shall be forwarded to the Depot Commandant for processing their removal.

There is no statutory time limit imposed on the Depot Commandant for the removal of your client.



Therefore, what will be **faced by your client after sentencing?**

b. Should your client be sentenced to imprisonment or be unable to remit the fine.

- They shall be transferred to a state prison, such as Penjara Kajang.
- Upon the completion of their sentence, they will be escorted by Bahagian Pengusiran and transported to the designated depot for the processing of their removal.
- The allocation of the depot for your client will be dependent on the availability of space and not solely based on geographic location.
- Post-sentence, they will be classified as "Banduan Dagang," and the Depot Commandant will possess the authority to issue a deportation order (PTU).

In this instance, the provisions of Section 35 of the Immigration Act are inapplicable, and there is no requirement to wait 30 days to process their removal.

Tips!

- If your client enters a guilty plea and is sentenced to a fine, the fine should be paid the following day. A receipt and discharge order should then be sent to the prison.
- Immigration authorities will collect your client and transfer them directly to the depot.
- After your client has been sent to the depot, their family may arrange for a ticket for them to return to their home country, provided they are able to afford it.

This approach allows you to circumvent the 30-day waiting period stipulated under Section 35 of the Immigration Act.



However, certain challenges may arise

- Depots are frequently unresponsive to calls.
- It is advisable for lawyers or family members to personally visit the depot to facilitate the return process.
- A long date, typically at least 2 to 3 weeks, will be scheduled for their return.
- The depot has the discretion to select the airline for the deportation.

During mitigation in court, **you may request the Court to consider that your client will be detained in the depot for an extended period before their repatriation.** Although they may be sentenced to only one month, their total detention could extend to three or four additional months.

Should your client be unable to procure a ticket, their repatriation may be significantly delayed.

NEED ASSISTANCE FOR ANY IMMIGRATION OFFENCE?



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